

25TRCV04304 25TRCV04304

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-23

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Case Number: 25TRCV04304 Hearing Date: September 23, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

JENNIFER
GETZ, an individual,

Plaintiff,

Case No.:

25TRCV04304

vs.

[Tentative]
Granted

INTERINSURANCE

EXCHANGE OF THE AUTOMOBILE CLUB, a California registered insurance company;
and DOES 1- 20, inclusive;

Defendants.

Hearing

Date: September
23, 2026

Moving Party: Defendant Interinsurance Exchange
of the Automobile Club

Responding Party: Plaintiff Jennifer Getz

HEARING: Motion for Attorneys' Fees

The

Court considered the moving, opposition, and reply papers.

RULING

The

Court grants the Motion for Attorneys' Fees and awards Defendants \$14,820 in
fees and costs.

BACKGROUND

On December 18, 2025, Plaintiff

Jennifer Getz filed the Complaint against Defendant Interinsurance Exchange of
the Automobile Club, alleging causes of action for declaratory relief,
concealment, conversion, trespass to chattels, and breach of the covenant of
good faith and fair dealing.

On May 14, 2026, the Court entered

Judgment after granting Defendant's anti-SLAPP motion.

On July 8, 2026, Defendant filed the

Motion for Attorneys' Fees.

On September 10, 2026, Plaintiff

filed the Opposition.

On September 15, 2026, Defendant filed the Reply.

LEGAL STANDARD

Cal.

Code of Civ. Proc. § 425.16(c)(1) provides, in pertinent part, that in any action subject to a special motion to strike, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16 subd. (c)(1).)

This

fee-shifting provision is “broadly construed as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit.” (Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi (2006) 141 Cal.App.4th 15, 45.) The calculation of attorney’s fees in California begins with the “lodestar” method – multiplying the number of hours reasonably expended by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorney’s fee award. The lodestar figure may then be adjusted, based on factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Ibid. at p. 48, fn. 23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.) “It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. The value of legal services performed in a case is a matter in which the trial court has its own expertise. . . . The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.)

The

court's focus in evaluating the facts should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. (*Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397 [verified time records entitled to credence absent clear indication they are erroneous].) However, California case law permits fee awards in the absence of detailed time sheets. (*Sommers v. Erb* (1992) 2 Cal.App.4th 1644, 1651; *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1810; *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 103.) An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court. (*Ibid.*; *Serrano*, 20 Cal.3d 25 at 49.)

¿¿¿

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.¿(*Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc.* (2008) 163 Cal.App.4th 550, 564.)¿General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.¿ (*Ibid.*)

DISCUSSION

Defendant

requests that the Court award \$16,320 in attorney fees.

Defendant

argues that, as the prevailing party on its special motion to strike, it is entitled to mandatory attorney fees under Code of Civil Procedure section 425.16, subdivision (c)(1), which is broadly construed to reimburse a prevailing defendant for the expense of extricating itself from a baseless lawsuit.

Defendant

further argues that its request is reasonable under the lodestar method, which begins with compiling the time spent and the reasonable hourly compensation of

each attorney. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131-1132.) Defendant contends that detailed billing records are not required and that declarations of counsel setting forth the reasonable hourly rate, the hours worked, and the tasks performed are sufficient. (Cruz v. Fusion Buffet, Inc. (2020) 57 Cal.App.5th 221, 237-238.) Relying on the declaration of defense counsel Tina M. Bhatia, Defendant states that Mr. Castronovo and Ms. Bhatia each billed at \$300.00 per hour, a rate below the Los Angeles market, and that they spent 19.8 and 24.7 hours on the anti-SLAPP motion for \$13,350.00. Adding 4.5 hours for this motion, an anticipated 3 hours for a reply, 2 hours for the hearing, and filing costs, Defendant requests total fees of \$16,200.00 and costs of \$120.00, for a total of \$16,320.00.

In

opposition, Plaintiff argues that Defendant's motion for attorney fees should be denied or reduced by at least \$8,610.00 because Defendant submitted no actual billing records and relies solely on the declaration of one of its two attorneys. Plaintiff contends that recoverable fees after prevailing on a special motion to strike are limited to work on the motion itself, not the entire litigation; that Defendant bears the burden of documenting appropriate hours and rates; and that the Court retains broad discretion to reduce an excessive request or deny an unreasonable one. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) Plaintiff maintains that vague or aggregated billing supports a reduction and that Defendant's failure to submit records deprived Plaintiff of a meaningful opportunity to review and challenge the request. (Christian Research Institute, supra, 165 Cal.App.4th 1315, 1325.)

Plaintiff

further argues that Ms. Bhatia claims 24.7 hours, and Mr. Castronovo claims 19.8 hours across overlapping tasks, with no allocation between the two attorneys, no justification for staffing the motion with both, and no explanation why it required 44.5 attorney hours between two experienced practitioners. Plaintiff contends that Mr. Castronovo's only additional tasks were reviewing the complaint, meeting and conferring, and appearing at a hearing that lasted less than an hour; that the first two are non-recoverable general litigation tasks; and that at least 18.8 hours, or \$5,640.00, of his duplicate billing should be denied. Plaintiff also argues that the motion is internally inconsistent, as the notice requests \$16,320.00 with no costs, the Bhatia declaration totals \$16,260.00, and the motion requests \$16,200.00 in fees and \$120.00 in costs.

Here, it is uncontested that

Defendant is entitled to fees based on the successful anti-SLAPP motion. Accordingly, the Court will analyze only the reasonableness of the claimed fees.

Hours

When challenging attorney fees as excessive

because too many hours of work are claimed, the challenging party bears the burden of pointing to specific items challenged, providing a sufficient argument, and citing relevant evidence.¿ (Premier Medical Management Systems, supra, 163 Cal.App.4th 550, 564.)¿ General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.¿ (Ibid.)

First, looking at Plaintiff's argument that

Defendant's motion lacks billing records and that much of the work claimed by Defendant's attorneys was duplicative. In Concepcion, the Court found that exact billing records are not required. (Concepcion v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1324.) Furthermore, Plaintiff's duplicative and general litigation arguments, not supported by evidence, are of the type of general arguments rejected in Premier. (Premier Medical Management Systems, supra, 163 Cal.App.4th 550, 564.)

However, the Court finds that the 9.5 hours

billed for filing the instant motion are excessive and reduces them to 4.5 hours.

Therefore, the Court grants the Motion for

Attorney's fees and awards Defendants \$14,820 in fees and costs.